

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Santosh Prakash	Team: Squad #08	CCRB Case #: 201902432	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 03/06/2019 5:50 PM	Location of Incident: Inside § 87(2)(b)	18 Mo. SOL 4/23/2021	Precinct: 77		
Date/Time CV Reported Mon, 03/11/2019 5:00 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/20/2019 11:05 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Dionisi	15890	957550	077 PCT
2. POM Christopher Messina	01448	961950	077 PCT
3. POM Robert Brower	09982	956460	077 PCT
4. An officer			077 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Saskya Rodriguez	17123	961196	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Dionisi	Abuse: Police Officer Joseph Dionisi threatened to arrest § 87(2)(b)	A . Exonerated
B . POM Joseph Dionisi	Force: Police Officer Joseph Dionisi used physical force against § 87(2)(b)	B . Exonerated
C . POM Christopher Messina	Force: Police Officer Christopher Messina used physical force against § 87(2)(b)	C . Exonerated
D . An officer	Abuse: An officer interfered with § 87(2)(b)'s use of a recording device.	D . Exonerated
E . POM Joseph Dionisi	Abuse: Police Officer Joseph Dionisi threatened § 87(2)(b) with the use of force.	E . Exonerated
F . POM Joseph Dionisi	Abuse: Police Officer Joseph Dionisi threatened § 87(2)(b)'s dog with the use of force.	F . Exonerated
G . POM Joseph Dionisi	Abuse: Police Officer Joseph Dionisi threatened § 87(2)(b) with the use of force.	G . Unsubstantiated
H . POM Robert Brower	Force: Police Officer Robert Brower used physical force against § 87(2)(b)	H . Exonerated
I . POM Robert Brower	Abuse: Police Officer Robert Brower threatened § 87(2)(b) with the use of force.	I . Exonerated
J . POM Robert Brower	Abuse: Police Officer Robert Brower damaged § 87(2)(b)'s property.	J . Exonerated
K . POM Robert Brower	Abuse: Police Officer Robert Brower damaged § 87(2)(b)'s property.	K . Unfounded

Case Summary

On March 20, 2019, the CCRB received the following case from IAB via original log number 19-9957, filed by complainant/victim § 87(2)(b)

On March 6, 2019, at approximately 5:50 PM, while evicting § 87(2)(b) and his dog from their residence at § 87(2)(b) in Brooklyn, PO Joseph Dionisi (of the 77th Precinct) threatened to arrest § 87(2)(b) (**Allegation A: Abuse of Authority – exonerated**) When § 87(2)(b) refused to leave the premises, PO Dionisi and his partner PO Christopher Messina initiated physical contact with § 87(2)(b) and began to restrain him. (**Allegations B, C: Force – exonerated**) At the same moment, PO Saskya Rodriguez (77th Precinct) grabbed a cell phone out of § 87(2)(b)'s hands and prevented him from video recording the police action. (**Allegation D: Abuse of Authority – exonerated**) While grappling with him, PO Dionisi allegedly threatened to tase § 87(2)(b) – who had his dog on a leash beside him – if he did not let go of the leash. (**Allegation E: Abuse of Authority – exonerated**) PO Dionisi then drew his taser and pointed it at § 87(2)(b)'s dog. (**Allegation F: Abuse of Authority – exonerated**) PO Dionisi also allegedly held the taser to § 87(2)(b)'s head. (**Allegation G: Abuse of Authority – unsubstantiated**) Shortly thereafter, PO Robert Brower (77th Precinct) arrived and joined the other officers in restraining § 87(2)(b) (**Allegation H: Force – exonerated**) PO Brower threatened to tase § 87(2)(b) as well. (**Allegation I: Abuse of Authority – exonerated**) When § 87(2)(b) still refused to let go of his dog, PO Brower used a blade to cut the leash from § 87(2)(b)'s grasp. (**Allegation J: Property Damage – exonerated**) PO Brower also allegedly cut § 87(2)(b)'s back pack off his shoulders. (**Allegation K: Property Damage – unfounded**) PO Dionisi, PO Messina, and PO Brower then jointly took § 87(2)(b) to the ground and handcuffed him. (**Subsumed – Allegations B, C, H**)

§ 87(2)(b) was ultimately evicted pursuant to a housing court order and charged with § 87(2)(a) 160.50 (BR08) There is Body Worn Camera (BWC) footage of the incident. (BR05 – BR07)

Findings and Recommendations

Allegation (A) Abuse of Authority – Threat of Arrest: Police Officer Joseph Dionisi threatened to arrest § 87(2)(b)

As established by the parties' testimony and the BWC footage, the following facts are undisputed. On March 6, 2019, at approximately 5:50 PM, 77th Precinct officers assisted the City Marshall with enforcing an eviction order at § 87(2)(b) a three-story multi-unit residential building. As the order applied to the entire building, the officers informed all of the present tenants, including § 87(2)(b) that they were required to vacate the premises. When § 87(2)(b) expressly refused to comply, PO Dionisi told him that he could be arrested for trespassing. A struggle then ensued between § 87(2)(b) PO Dionisi, PO Messina, and PO Brower.

Neither § 87(2)(b) nor PO Dionisi disputed the context of the exchange above (BR01, BR04), which unfolds as follows on PO Dionisi's BWC footage. (BR05) Between 17:48:00 and 17:50:00, PO Dionisi repeatedly advises § 87(2)(b) that he has to vacate the premises per the eviction order. § 87(2)(b) challenges the validity of the order and calls 911 to request that a supervisor respond to the scene. At 17:50:25, PO Dionisi states, "if you refuse to leave or come back then you will be subject to arrest." § 87(2)(b) then expressly tells PO Dionisi that he will not leave. (BR05)

NYPD records show that the officers were assisting the New York City Marshall with executing eviction notice number § 87(2)(b). (BR08)

Per New York Penal Law 140.05, a person is guilty of trespass when they knowingly enter or remain unlawfully in or upon premises. (BR09)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Exonerated**.

Allegation (B) – Force: Police Officer Joseph Dionisi used physical force against § 87(2)(b)

Allegation (C) – Force: Police Officer Christopher Messina used physical force against § 87(2)(b)

Allegation (E) – Abuse of Authority: Police Officer Joseph Dionisi threatened § 87(2)(b) with the use of force.

Allegation (F) – Abuse of Authority: Police Officer Joseph Dionisi threatened § 87(2)(b)'s dog with the use of force.

Allegation (G) – Abuse of Authority: Police Officer Joseph Dionisi threatened § 87(2)(b) with the use of force.

Allegation (H) – Force: Police Officer Robert Brower used physical force against § 87(2)(b)

Allegation (I) – Force: Police Officer Robert Brower threatened § 87(2)(b) with the use of force.

Allegation (J) – Abuse of Authority: Police Officer Robert Brower damaged § 87(2)(b)'s property.

Allegation (K) – Abuse of Authority: Police Officer Robert Brower damaged § 87(2)(b)'s property.

It is undisputed that PO Dionisi, PO Messina, and PO Brower used physical force while arresting § 87(2)(b). It is also undisputed that PO Dionisi pointed his taser at § 87(2)(b)'s dog and that PO Brower threatened to tase him. § 87(2)(g)

§ 87(2)(b) acknowledged that he refused to vacate the building even after PO Dionisi told him he could be arrested. § 87(2)(b) also acknowledged that he was holding his 100-pound pit bull on a leash by his side (see photograph at BR02) and that when PO Dionisi told him to let go of the dog, he told him “it’s going to bite you.” § 87(2)(b) stated that PO Dionisi and three surrounding officers then began to grapple with his arms as they attempted to handcuff him. As they did so, § 87(2)(b) refused to surrender his arms and pulled away in the opposite direction of the officers. After eventually cutting the dog leash – which § 87(2)(b) acknowledged holding through the course of the struggle, despite being told to let it go – the officers forcibly took him to the ground. (BR01)

According to § 87(2)(b) at one point during the struggle, while he was grappling with him from the rear, PO Dionisi (whose name he later learned at the stationhouse and who he mistakenly described as a dark-complexioned Indian male) drew a taser and pointed it at § 87(2)(b) for approximately a minute, during which time the device was in contact with the left side of his head. (BR01)

The investigation obtained a phone statement from § 87(2)(b) s neighbor § 87(2)(b) who said she witnessed the arrest from a close distance. § 87(2)(b) version of the events was mostly consistent with § 87(2)(b) though she recalled him being in physical contact with only three officers, not four. § 87(2)(b) stated that at some point while they were tackling him, a white male officer drew his taser and pointed it at § 87(2)(b) though she did not know where on his person it was aimed. (BR03)

PO Dionisi stated that he, his partner PO Messina, PO Brower, PO Saskya Rodriguez, and approximately two other units responded to § 87(2)(b) to execute and enforce the City Marshall’s eviction order, which applied to all of the building’s tenants. Per PO Dionisi, nearly all of the other present tenants were compliant when they were informed they had to leave. However, when the same was conveyed to § 87(2)(b) outside his apartment on the third floor of the building, he challenged the validity of the eviction order, and stated that he would not comply. When PO Dionisi then advised § 87(2)(b) that he would be arrested for trespassing if he did not comply, § 87(2)(b) told him that he was not going to leave and that “if [the officers] touched him his dog was going to bite them.” PO Dionisi stated that § 87(2)(b) s pit bull, which he was holding at his side, was particularly large in size. Interpreting § 87(2)(b) s remark as threatening, and considering him to be under arrest for trespassing, PO Dionisi thus proceeded to draw his taser as a precautionary measure. With his taser pointed at the dog, he told § 87(2)(b) to let go of the leash and put his hands behind his back. However, he refused to do so, tensed his body, and kept wriggling away when PO Dionisi and PO Messina tried to handcuff him. At about the same time, PO Brower used a utility blade to cut the leash to separate the dog from § 87(2)(b) PO Brower, PO Messina, and PO Dionisi then jointly restrained § 87(2)(b) and brought him down to the ground, after which he was taken into custody without further incident. PO Dionisi did not recall if he or any of the other officers pointed his taser at § 87(2)(b) and said he did so at the dog because it posed a danger to their safety, given its size. PO Dionisi did not recall if he ever told § 87(2)(b) that he would be tased if he did not stop resisting. PO Dionisi did not recall if PO Brower had to cut a back pack off § 87(2)(b) s shoulders during the struggle. (BR04)

The investigation obtained BWC footage from all of the officers present at the scene, including the three who came into direct contact with § 87(2)(b) – PO Dionisi, PO Messina, and PO Brower. (BR05- BR07) Taken together, the footage is largely consistent with PO Dionisi’s account of the events. Between 17:48:45 and 17:50:10, § 87(2)(b) refuses multiple orders to vacate the premises, and expressly states he will not leave. At 17:50:25, PO Dionisi states: "If you refuse to leave or come back then you will be subject to arrest." § 87(2)(b) tells PO Dionisi that he will not leave. PO Dionisi then asks him to "let go of the dog," in response to which § 87(2)(b) states "my dog is going to bite you." At approximately 17:52:08, PO Dionisi’s and PO Messina’s BWCs become obstructed and the frames turn to black, presumably – since § 87(2)(b) is heard saying "get your hands off me" – because their bodies are in near contact with § 87(2)(b) (BR05-BR06) When PO Brower begins assisting the officers soon thereafter, his BWC becomes obstructed in the same manner. (BR07)

Between 17:52:00 and 17:54:00, the following then transpires on all three BWCs. As the officers appear to grapple with § 87(2)(b) PO Dionisi and PO Brower both repeatedly tell him to “let go of the dog.” (BR05-BR07) PO Brower eventually tells § 87(2)(b) "you are going to get tased!" When § 87(2)(b) responds, "I'm not going to let go of the dog," PO Brower says "then I'm going to cut the leash." Eventually, between 17:53:55 and 17:54:11, the BWCs return to visual capture, as § 87(2)(b) is seen upright, rear-cuffed, and escorted out without further incident. Notably, at 17:55:20 on PO Brower’s BWC, § 87(2)(b) s back pack appears to be secured on his shoulders as he is led downstairs. (BR07) Due to the camera obstruction, the footage does not show any of the officers with their tasers drawn or pointed, nor any use of force (beyond the grappling relayed above) including the undisputed forcible takedown.

Patrol Guide Procedure 221-01 states that all use of force – including the use of a CEW device – must be objectively reasonable under the totality of the circumstances. (BR10)

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§ 87(2)(g) it is recommended that **Allegations B, C, E, F, H and I** be closed as **Exonerated** and that **Allegation G** be closed as **Unsubstantiated.** § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation J** be closed as **Exonerated** and that **Allegation K** be closed as **Unfounded.**

Allegation (D) – Abuse of Authority: An officer interfered with § 87(2)(b)'s use of a recording device.

§ 87(2)(b) stated that while he was being placed under arrest by the male officers, he passed § 87(2)(b) cell phone – which he had been using to call 911 – back to her and asked her to begin video recording. Allegedly, a female officer grabbed the phone out of § 87(2)(b) hands. (BR01)

§ 87(2)(b) however stated that a female officer grabbed the phone from § 87(2)(b) and said nothing about him attempting to video record. (BR02)

PO Dionisi acknowledged that one of the officers took the phone from § 87(2)(b)'s hands while he was on the phone with 911. He stated this was done as a safety measure, since § 87(2)(b) was being handcuffed and arrested. (BR03)

The BWC footage only shows § 87(2)(b) on the phone with 911 as PO Dionisi and PO Messina are attempting to rear-cuff him, before the cameras then become obstructed. (BR05-BR06)

Patrol Guide Procedure 221-01 states that officers may use all reasonable force necessary to gain control or custody of a subject. (BR10)

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§ 87(2)(g) It is therefore recommended that
Allegation D be closed as **Exonerated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- PO Dionisi has been a member of service for the past four years and has been a subject in three prior complaints and three allegations, one of which was substantiated (201806017, Abuse – Vehicle Stop, Substantiated – Command Discipline A). § 87(2)(g)
- PO Messina has been a member of service for the past three years and has been a subject in one prior complaint and one allegation, which was closed pending litigation. § 87(2)(g)
- PO Brower has been a member of service for the past five years and has been a subject in four prior complaints and four allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

This case was not mediation eligible. Notice of Claim results submitted to the Office of the Comptroller on September 23, 2019, are pending. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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